

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 19, 2023, a complaint was filed with entry registration number XXXXXXXXXXXXXXX before the Spanish Agency for Data Protection against SEUR GEOPOST, S.L. with NIF B82516600 (hereinafter, the complained party or SEUR). The reasons for the complaint are as follows:

The complainant states that they were the recipient of a package whose delivery management was the responsibility of SEUR GEOPOST S.L. On May 11, 2023, they were notified of the delivery of the package, despite not being at their residence, which led them to contact the complained entity. After several calls and a visit to the SEUR office, they were informed that, without their consent, the package had been delivered to the residence of the "neighbor from A."

Upon receiving the delivery note, they checked that it contained a signature that did not correspond to theirs and an unknown National Identity Document (DNI), leading them to believe that SEUR had improperly managed the package.

The complainant asserts that they later found the package in front of their door, which had been opened and its contents were in disarray. On one side, their personal data (full name, address, email, phone number, DNI) were listed. Along with the complaint, they provided a copy of the delivery note issued by the complained entity.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to SEUR for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on July 17, 2023, as evidenced by the acknowledgment of receipt in the file.

On July 24, 2023, a communication was received by this Agency from SEUR, in which the forwarded complaint and request for information, sent by the AEPD to the complained party, were included, without providing the response document to the same.

For this reason, on August 17, 2023, a new letter was sent to SEUR stating that the response document was not attached to the July 24, 2023, submission, requesting its submission. This document was acknowledged on August 21, 2023, as evidenced by the acknowledgment of receipt in the file.

On August 21, 2023, a written statement of allegations was received by this Agency from SEUR, indicating:

The notification sent by the AEPD was addressed to SEUR, S.A. However, the service subject to the complaint was provided by SEUR GEOPOST S.L.U., a company of the SEUR Group.

After conducting an investigation, SEUR has verified the following:

- A SEUR delivery person went to the complainant's home to make a delivery.
- The complainant was absent at the time of delivery.
- The delivery person delivered the complainant's package to a neighbor.

SEUR claims that the incident occurred as a result of an error by the delivery person, who did not follow the company's internal protocols for the correct delivery and collection of goods.

The complained party states that it has implemented procedures and corporate manuals that outline the guidelines to be followed for the correct delivery or collection of goods, providing various documentation related to them.

THIRD: On August 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, given that SEUR GEOPOST, S.L. carries out, among other processes, the retention and use of the following personal data of individuals, such as: name, surname, identification number, address, and telephone number.

SEUR GEOPOST, S.L. carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter personal data breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or to the unauthorized communication or access to such data."

III

Presumption of Innocence

In the present case, a complaint is made due to the delivery of a package intended for the complainant to a neighbor, which leads the complainant to consider that the confidentiality of their personal data may have been compromised.

Specifically, the complainant has stated that their data included on the shipping label, among others, their postal data and telephone number, were exposed to a third party (a neighbor), although they have not provided any evidence to substantiate the data that actually appeared on the exterior of the delivered package.

This Agency understands that confidentiality will only be affected when access to personal data that is not public or that was not previously known to that third party is made possible.

Thus, the delivery of a package to a neighbor of the recipient, when no additional data beyond what is strictly necessary for delivery (name and address) appears on the postal shipment, does not compromise the confidentiality of the recipient's personal data, as no personal data of the complainant that the recipient did not already know is disclosed.

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In conclusion, in the case at hand, the examination of the documents provided in the transfer proceedings highlights the absence of evidence capable of justifying the initiation of a sanctioning procedure, as it has not been established which personal data of the claimant, beyond their name and

address, were exposed to unauthorized third parties, given that the package was delivered to a neighbor of the claimant, and there is no record that any data unknown to them was disclosed. The delivery note issued by the courier company, submitted along with the claim, does not serve to substantiate such a circumstance.

In this regard, it should be emphasized that in the context of sanctioning administrative law, the guiding principles of criminal law apply, with some nuances but without exceptions, and the principle of the presumption of innocence has full effect, which must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions.

The Constitutional Court in Judgment 76/1990 (STC) considers that the right to the presumption of innocence entails “that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, with no one being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal.”

In accordance with this approach, Article 53.2 of the LPACAP establishes that, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:

“a) (...)

b) The presumption of non-existence of administrative responsibility until proven otherwise.

As the Supreme Court clarified in its Judgment of October 26, 1998, the validity of the principle of the presumption of innocence “does not oppose that judicial conviction in a process may be formed on the basis of circumstantial evidence, but for this evidence to undermine that presumption, it must meet the following constitutional requirements: the indications must be fully proven – they cannot be mere suspicions – and the reasoning by which, based on the proven indications, it has been concluded that the accused committed the infringing conduct must be explicit, otherwise, neither the subsumption would be legally founded nor would there be a way to determine if the deductive process is arbitrary, irrational, or absurd, that is, if the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating.”

Thus, it is necessary to distinguish true circumstantial evidence from mere suspicions or conjectures.

The Constitutional Court has stated in its Judgment 24/1997 that “the criteria for distinguishing between circumstantial evidence capable of undermining the presumption of innocence and mere suspicions are based on the following: a) The circumstantial evidence must be based on fully proven facts. b) The facts

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The elements constituting a crime must be deduced from those indications (completely proven facts) through a reasoned mental process in accordance with the rules of human judgment, as stated in the convicting sentence (SSTC 174/1985, 175/1985, 229/1988, 107/1989, 384/1993, and 206/1994, among others).

In conclusion, the principle of the presumption of innocence prevents the imputation of an administrative infringement when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them.

In this case, as has been stated, there are no rational indications that would allow attributing to the claimed party the commission of the infringements of the personal data protection regulations reported, therefore, it cannot be considered that the right to the presumption of innocence that protects them has been undermined.

IV

Conclusion

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data

Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute any responsibility for the exposure of the personal data of the claiming party, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to SEUR GEOPOST, S.L. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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